

1.

CASE #	CASE NAME	HEARING NAME
CVRI2505883	SOLORZANO VS DE LUIS	DEMURRER BY CROSS-DEFENDANT TO THE CROSS-COMPLAINT

Tentative Ruling:

The Demurrer filed by Cross-Defendant, ABRAN SOLORZANO, as to the Cross-Complaint is unopposed. Accordingly, the Demurrer is sustained as to the Third, Fourth, Fifth, and Seventh Causes of action **without** leave to amend. The Proposed Order submitted to the Court has been signed and ordered filed. Moving party to give notice of ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505883	SOLORZANO VS DE LUIS	MOTION TO STRIKE DEFENDANTS AFFIRMATIVE DEFENSES

Tentative Ruling:

This motion is premature. As of 7/10/2026, Defendant has not filed an Answer to the Complaint.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502206	WALKER VS FAN	MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

Tentative Ruling:

This motion is unopposed. Accordingly, the motion for leave to file a Second Amended Complaint is granted. Plaintiff is ordered to file the Second Amended Complaint within 10 days of this order and serve all parties.

Once the Second Amended Complaint is filed, it becomes the operative pleading and must be served on all Defendants, thus vitiating the Default entered on 11/26/2025 as to Defendant, Kai Fan. Which makes the motion to set aside the default calendared for 7/27/2026 moot. The Court will vacate the hearing set for 7/27/2026 and set aside the default of Kai Fan.

The Case Management Conference set on 7/13/2026 is continued to 9/14/2026. Additionally, as a general rule, a trust is not a legal personality, and the trustee is the proper person to sue or be sued on behalf of such trust. However, a trustee's duties in connection with his or her office do not include the right to present argument in propria

persona in courts of the state, because in this capacity the trustee would be representing interests of the beneficiaries and would therefore be engaging in the unauthorized practice of law in violation of Bus. & Prof. Code, § 6125. *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545.

Section 6125 states, “No person shall practice law in California unless the person is an active member of the State Bar.” Under the statute, one who is not a licensed attorney cannot appear in court for another person. (*Russell v. Dopp* (1995) 36 Cal.App.4th 765, 774 [42 Cal.Rptr.2d 768]; *Pickett v. Municipal Court* (1967) 249 Cal.App.2d 844, 846

The Court issues an OSC to COREY WALKER, as Trustee of the New Beginnings Trust dated January 1, 2024, and as Trustee of LWY Riders LLC (a trust); and KEVIN WALKER, as Co- Trustee of the New Beginnings Trust dated January 1, 2024, and as Co- Trustee of LWY Riders LLC (a trust), as to why sanctions of up to \$1,500 or striking of its pleadings and dismissal should not be imposed for the failure to retain counsel.

A declaration under RSC Local Rule 3116 is to be filed 5 court days prior to the next hearing on 9/14/2026.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501559	STACY ADAMS VS PACIFIC SPECIALTY INSURANCE COMPANY	MOTION FOR SANCTIONS BY PACIFIC SPECIALTY INSURANCE COMPANY

Tentative Ruling:

This Motion for Terminating Sanctions is unopposed. Accordingly, the motion is granted and the case is dismissed in its entirety. The proposed order submitted has been signed.

The Court previously granted Defendant’s motions to compel on 1/13/2026 ordering Plaintiff to provide all the requested discovery. Having failed to comply with the Court’s previous order it does not appear to the Court that a less severe sanction would gain compliance.